

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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GERRICK GAMBRELL,

Plaintiff,

-against-

CITY OF NEW YORK, P.O. RYAN LOOMIS,
SGT. JOHN KEANE, AND OTHER UNKNOWN
NEW YORK CITY POLICE OFFICERS,

Defendants.
-----X

LD # 2014-PI005334

Index No.:

Date Filed:

SUMMONS

Plaintiff designates New York
County as the place of trial

The basis of venue is
site of occurrence

Plaintiff resides at
480 St. Nicholas Avenue
New York, New York 10030
County of New York

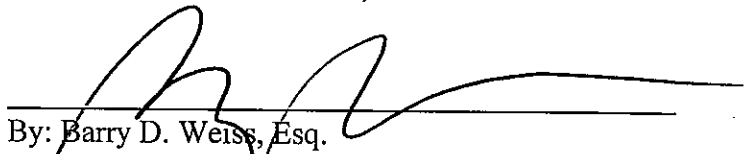
To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
April 13, 2015

Yours, etc.,

WEISS & ROSENBLOOM, P.C.


By: Barry D. Weiss, Esq.
Attorneys for Plaintiff
GERRICK GAMBRELL
27 Union Square West, Suite 307
New York, NY 10003
(212) 366-6100

TO:
CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. RYAN LOOMIS

New York City Police Department - 32nd Precinct or
250 West 135th Street
New York, New York 10030

New York City Police Department
One Police Plaza
New York, NY 10007

SGT. JOHN KEANE

New York City Police Department- 32nd Precinct or
250 West 135th Street
New York, New York 10030

New York City Police Department
One Police Plaza
New York, NY 10007

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VERIFIED COMPLAINT

Plaintiff, GERRICK GAMBRELL, by his attorneys, WEISS & ROSENBLOOM, P.C.,
complaining of Defendants, respectfully alleges, upon information and belief, as follows:

1. At all times herein mentioned, plaintiff, GERRICK GAMBRELL, was and still is a resident of the County of New York, City and State of New York.
2. The cause of action alleged herein arose in the County of New York, City and State of New York.
3. This action falls within one or more of the exceptions as set forth in CPLR Section 1602.
4. Defendant, CITY OF NEW YORK, is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
5. Plaintiff, GERRICK GAMBRELL, has duly complied with all the conditions precedent to the bringing of this action and in particular, has, on or about February 21, 2014 and within the time prescribed by law, duly served upon defendant, CITY OF NEW YORK, a Notice of Intention to Make Claim stating, among other things, the time when and place where the

injuries and damages were sustained, and more than thirty (30) days have elapsed since the presentation of said notice of claim, and such claim remains unadjusted and unpaid, and thereafter, and within the time provided by law, this action was commenced.

6. A hearing pursuant to General Municipal Law 50(h) will be conducted on April 14, 2015.

7. This action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

8. Defendant, P.O. RYAN LOOMIS, is and at all relevant times was, an employee of defendant, CITY OF NEW YORK, his shield number is 11460, and his place of business is the 32nd Precinct.

9. At all relevant times, defendant, P.O. RYAN LOOMIS, was acting under the color of state law and in the scope of his employment with defendant, CITY OF NEW YORK.

10. Defendant, SGT. JOHN KEANE, is and at all relevant times was, an employee of defendant, CITY OF NEW YORK, his shield number is currently unknown, and his place of business is the 32nd Precinct.

11. At all relevant times, defendant, SGT. JOHN KEANE, was acting under the color of state law and in the scope of his employment with defendant, CITY OF NEW YORK.

FACTUAL ALLEGATIONS

12. On or about January 14, 2014, at approximately 8:00 PM, plaintiff, GERRICK GAMBRELL, was lawfully inside the subway station located at Lenox Avenue and West 135th Street, in the County of New York, City and State of New York (the "Station").

13. At all times herein mentioned, plaintiff, GERRICK GAMBRELL, was not committing any criminal offenses or violations.

14. At the aforesaid date and time, while plaintiff, GERRICK GAMBRELL, was lawfully attempting to exit the Station by ascending the stairs, numerous police officers, including, but not limited to, defendant, P.O. RYAN LOOMIS and SGT. JOHN KEANE, and other police officers whose identities are currently unknown to plaintiff, while acting within the scope of their employment as police officers and while on duty as such, came running down the stairs of the Station.

15. At the aforesaid date and time, one of the police officers, believed to be P.O. RYAN LOOMIS, while acting within the scope of his employment as a police officer and while on duty as such, accidentally ran into plaintiff, GERRICK GAMBRELL, pushing him backwards. When plaintiff, GERRICK GAMBRELL objected to the physical contact, defendant, P.O. RYAN LOOMIS grabbed plaintiff, GERRICK GAMBRELL, by his shoulders and threw plaintiff, GERRICK GAMBRELL, into a wall.

16. At the aforesaid date and time, numerous police officers, including but not limited to, defendant, P.O. RYAN LOOMIS and SGT. JOHN KEANE, and other police officers whose identities are currently unknown to plaintiff, while acting within the scope of their employment as police officers and while on duty as such, then threw plaintiff, GERRICK GAMBRELL, to the ground, repeatedly beat plaintiff, GERRICK GAMBRELL, in the face and back, and sprayed mace in plaintiff, GERRICK GAMBRELL's, face.

17. At the aforementioned time and place, plaintiff, GERRICK GAMBRELL, was placed in handcuffs without just or probable cause, placed in a van, and transported to the 32nd precinct.

18. While at the 32nd precinct, plaintiff, GERRICK, GAMBRELL, was searched and placed in a holding cell without being advised of the charges against him.

19. While still in police custody, plaintiff, GERRICK GAMBRELL, was placed in leg shackles as well as handcuffs and transported to Harlem Hospital for medical treatment, after which he was returned to the 32nd precinct.

20. On January 15, 2014, plaintiff, GERRICK GAMBRELL, was charged with committing the crimes of assault, attempted assault, resisting arrest, obstructing governmental administration, and harassment. He was arraigned on the aforementioned charges and was released on his own recognizance.

AS AND FOR A FIRST CAUSE OF ACTION

21. Defendant, P.O. RYAN LOOMIS, defendant, SGT. JOHN KEANE, and other police officers, the identities of whom are currently unknown to plaintiff, while acting within the scope of their employment as New York City Police Officers and while on duty as such, during their arrest of plaintiff, GERRICK GAMBRELL, assaulted, battered and otherwise used non-privileged excessive and unnecessary use of force against him in violation of law.

22. Defendant, City of New York, is liable for the acts of their employees under the theory of respondeat superior.

23. As a result of the foregoing, plaintiff, GERRICK GAMBRELL, was caused to sustain physical and psychological trauma.

24. The above mentioned occurrence and the results thereof were caused solely by the unlawful acts of defendants, CITY OF NEW YORK, P.O. RYAN LOOMIS, SGT. JOHN KEANE, and other police officers, the identities of whom are currently unknown to plaintiff, and/or said defendants' servants, agents, employees and/or licensees.

25. By reason of the foregoing, plaintiff, GERRICK GAMBRELL, was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

26. Plaintiff, GERRICK GAMBRELL, repeats and reiterates every allegation as set forth in paragraphs 1 - 25 above as if fully set forth herein.

27. Defendant, P.O. RYAN LOOMIS, defendant, SGT. JOHN KEANE, and other police officers, the identities of whom are currently unknown to plaintiff, unlawfully arrested and confined plaintiff, GERRICK GAMBRELL, without just or probable cause against his will and without the privilege to do so as the arrest was knowingly made without probable or just cause, in violation of law.

28. As a result of the foregoing, plaintiff, GERRICK GAMBRELL, was caused to sustain psychological trauma.

29. The above mentioned occurrence and the results thereof were caused solely by the unlawful acts of defendants, CITY OF NEW YORK, P.O. RYAN LOOMIS, SGT. JOHN KEANE, and other police officers, the identities of whom are currently unknown to plaintiff, and/or said defendants' servants, agents, employees and/or licensees.

30. By reason of the foregoing, plaintiff, GERRICK GAMBRELL, was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

31. Plaintiff, GERRICK GAMBRELL, repeats and reiterates every allegation as set forth in paragraphs 1 - 30 above as if fully set forth herein.

32. By their aforementioned conduct, defendants, P.O. RYAN LOOMIS, and SGT. JOHN KEANE, under color of law, deprived plaintiff, GERRICK GAMBRELL, of his constitutional right to be free from excessive and unreasonable use of force pursuant to 42 U.S.C. SECTION 1983 causing the aforementioned damages.

33. By reason of the foregoing, plaintiff, GERRICK GAMBRELL, was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

34. Plaintiff, GERRICK GAMBRELL, repeats and reiterates every allegation as set forth in paragraphs 1 - 33 above as if fully set forth herein.

35. By their aforementioned conduct, defendants, P.O. RYAN LOOMIS, and SGT. JOHN KEANE, under color of law, deprived plaintiff, GERRICK GAMBRELL, of his constitutional right to be free from false arrest and false imprisonment pursuant to 42 U.S.C. SECTION 1983.

36. By reason of the foregoing, plaintiff, GERRICK GAMBRELL, was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

37. Plaintiff, GERRICK GAMBRELL, repeats and reiterates every allegation as set forth in paragraphs 1 - 36 above as if fully set forth herein.

38. Upon information and belief, defendants, P.O. RYAN LOOMIS, and SGT. JOHN KEANE, exhibited malicious and/or violent propensities prior to January 14, 2014 that were well known to defendant, CITY OF NEW YORK.

39. Upon ascertaining the malicious and/or violent propensities of defendant, P.O. RYAN LOOMIS, and defendant, JOHN KEANE, defendant, CITY OF NEW YORK, still retained said defendant in a position and place of power, allowing them to function as police officers, when in point and in fact, they were not qualified to do so due to their malicious and violent propensities.

40. As a result of the foregoing, plaintiff, GERRICK GAMBRELL, was caused to sustain physical and psychological trauma.

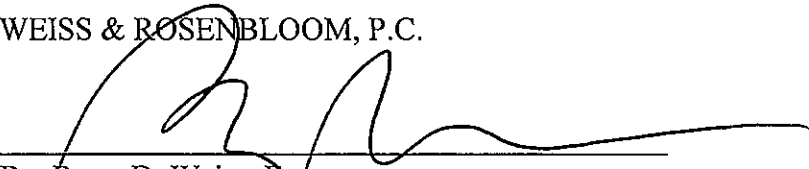
41. By reason of the foregoing, plaintiff, GERRICK GAMBRELL, was damaged in an amount exceeding the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, plaintiff, GERRICK GAMBRELL, demands judgment against defendants, CITY OF NEW YORK, P.O. RYAN LOOMIS, and SGT. JOHN KEANE, on each and every cause of action, in an amount exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Dated: New York, NY
April 13, 2015

Yours, etc.,

WEISS & ROSENBLUM, P.C.



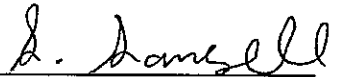
By: Barry D. Weiss, Esq.
Attorneys for Plaintiff
GERRICK GAMBRELL
27 Union Square West, Suite 307
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(212) 366-6100

VERIFICATION

STATE OF NEW YORK)
)S.S.:
COUNTY OF NEW YORK)

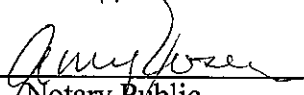
Gerrick Gambrell, being duly sworn, says:

I am the plaintiff in the within action and have read the contents of the foregoing COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to those matters said to be upon information and belief and as to those matters, I believe them to be true.



Gerrick Gambrell

Sworn to before me this
13 day of April 2015



Notary Public
Amy Rosenbloom
Notary Public State of NY
No. 31-4899389
Qualified in NY County
Commission Expires 6/15/15

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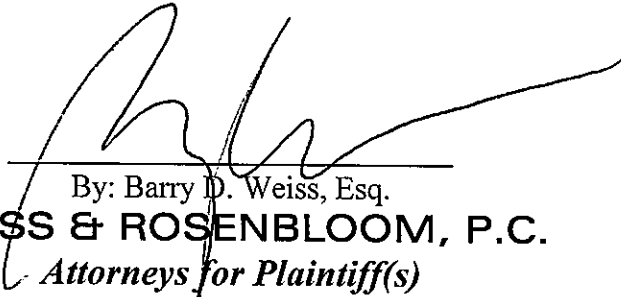
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SUMMONS AND VERIFIED COMPLAINT



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Attorneys for Plaintiff(s)

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